

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: William MacLure	Team: Squad #16	CCRB Case #: 201701626	☒ Force ☐ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Saturday, 02/25/2017 3:15 PM	Location of Incident: Inside of § 87(2)(b)	18 Mo. SOL 8/25/2018	Precinct: 67
Date/Time CV Reported Sat, 02/25/2017 7:29 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 03/02/2017 11:07 AM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Michael Scally	03721	948132	067 PCT
2. POM Garrett Gorham	12001	925375	067 PCT
3. POM William Pugliese	12760	953278	067 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Garrett Gorham	Force: Police Officer Garrett Gorham used physical force against § 87(2)(b)	A . Complainant Uncooperative
B . POM William Pugliese	Force: Police Officer William Pugliese used physical force against § 87(2)(b)	B . Complainant Uncooperative
C . SGT Michael Scally	Force: Sergeant Michael Scally used physical force against § 87(2)(b)	C . Complainant Uncooperative

Case Summary

On February 25, 2017, § 87(2)(b) filed this complaint at the 67th Precinct Stationhouse and Sgt. Michael Scally called IAB to report the complaint. This case was received at the CCRB on March 2, 2017 with no phone number for § 87(2)(b).

On March 3, 2017, a letter was sent to § 87(2)(b) asking him to call. On March 9, 2017, § 87(2)(b) called and confirmed that he received the letter sent on March 3, 2017. § 87(2)(b) scheduled an appointment for Monday, March 13, 2017, at 1:00 p.m. On March 13, 2017, § 87(2)(b) missed his appointment at the CCRB without calling in advance to cancel or reschedule. Calls were placed to § 87(2)(b) on March 13, March 16, March 22, March 24, and March 27, 2017, at different times of day, including after 5:00 p.m. On March 13, 2017, § 87(2)(b) hung up and did not answer when the undersigned investigator called back immediately after. No voice messages could be left on any of these occasions because § 87(2)(b) had not set up his voicemail box. Additional letters were sent on March 13, and March 22, 2017, requesting that § 87(2)(b) call back to reschedule his appointment. None of the letters were returned to sender by the US Postal Service. To date, § 87(2)(b) has not called to reschedule his appointment. On March 27, 2017, a search of NYC Department of Corrections database revealed that § 87(2)(b) was not incarcerated.

§ 87(2)(g). Therefore, it is recommended that **Allegations A through C** be closed as **complainant uncooperative**.

Squad:

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date